

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Thomas DeSantos
Judge of the Superior Court
County of Kings
1640 Kings County Drive
Hanford, CA 93230

Re: Soto, Joshua Andrew
CDC No.: V37673
Case No.: 07CM3449
Date of Sentence: 10/14/2010

Dear Honorable Thomas DeSantos:

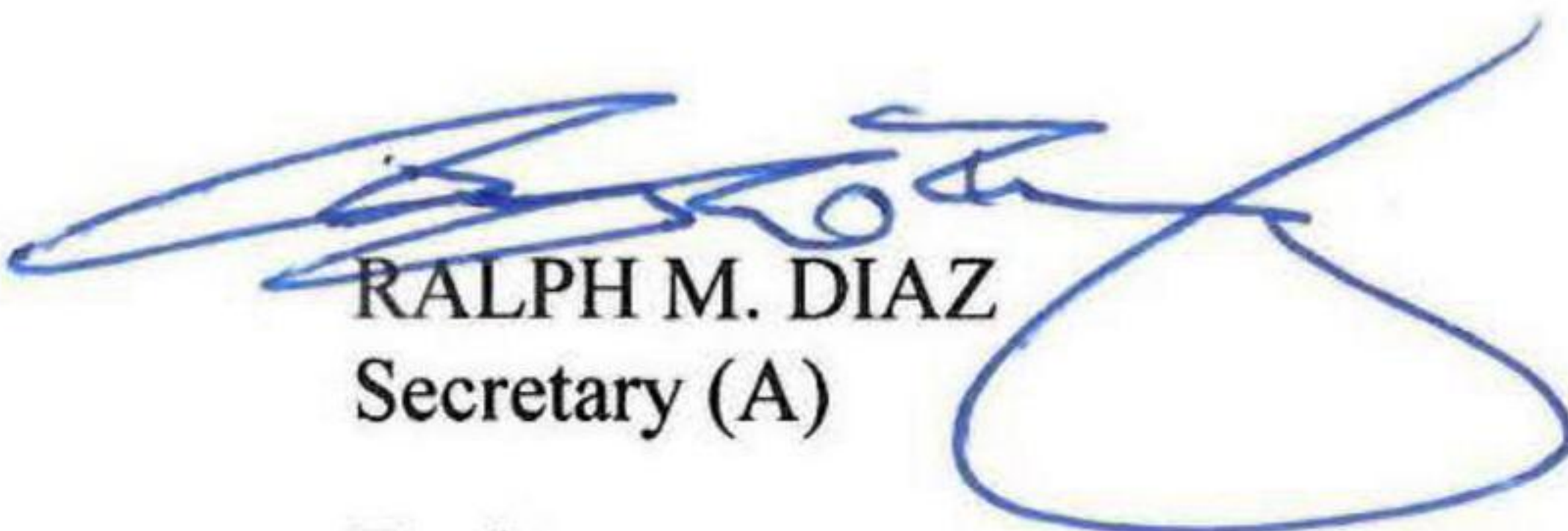
The purpose of this letter is to provide the court with authority to resentence Joshua Andrew Soto pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Soto was sentenced in 2010, and was convicted of section 245, subdivision (a)(1), ASSAULT LIKELY TO PRODUCE GREAT BODILY INJURY. The trial court sentenced inmate Soto on 10/14/2010. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Soto's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Soto's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Donna L. Tarter, Kings County Presiding Judge
Kings District Attorney
Public Defender

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: KINGS					
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JOSHUA ANDREW SOTO		DOB: 09-02-81	07CM 3449 -A -B -C -D		
AKA:		☐ NOT PRESENT			
CII NO.: A22320387					
BOOKING NO.: 07-0281258		☐ AMENDED ABSTRACT			
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT					
DATE OF HEARING 10-14-10	DEPT. NO. 01	JUDGE THOMAS DESANTOS			
CLERK RACHELLE SERRANO / KIM COTTA	REPORTER DAWN BICKNER	PROBATION NO. OR PROBATION OFFICER CHARITY SIMMONS ☐ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE CARLOS NAVARRETE, D.D.A.		COUNSEL FOR DEFENDANT CHARLES SHIVERS ☒ APPTD.			

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 ___ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (1/4 to 3/4 term)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
01	PC	182(a)(1)/211**	CONSPIRACY TO COMMIT 2 ND DEGREE ROBBERY	2007	04-23-08	X			U							5	0
02	PC	664/211**	ATTEMPTED 2 ND DEGREE ROBBERY	2007	04-23-08	X			U						X		
03	PC	245(a)(2)	ASSAULT WITH FIREARM	2007	04-23-08	X			M		X					1	0
04	PC	186.22(d)/148(a)(1)	PROMOTE/ASSIST IN CRIMINAL CONDUCT BY GANG MEMBER	2007	04-23-08	X			M			X				0	8
06	PC	245(a)(1)	ASSAULT LIKELY TO PRODUCE GREAT BODILY INJURY	2007	04-23-08	X			M			X				1	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	
01	12022(d)PC	2 years	12022.53(b)&(e)(1)PC	10 years			12	0
02	12022(d)PC	Stayed	12022.53(b)&(e)(1)PC	Stayed				
03	12022(d)PC	8 months	186.22(b)PC	1yr 8mo			2	4
06	12022.7PC	1 year	12022(d)PC	8 months	186.22(b)PC	3yrs 4 mo	5	0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	
667.5(b)PC	1 year	667.5(b)PC	1 year			2	0

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 29 00

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JOSHUA ANDREW SOTO			
07CM3449	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$10,000 per PC 1202.4(b) forthwith per PC 2085.5; \$10,000 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$RESERVED ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☒ * Victim name(s), if known, and amount breakdown in item 11, below. ☒ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$120.00 per PC 1465.8.

10. TESTING a. ☒ Compliance with PC 296 verified b. ☐ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

*VICTIM - SEBASTIAN GONZALES. DEFENDANT TO REGISTER PURSUANT TO 186.30(a)PC. DEFENDANT ADDITIONALLY SENTENCED TO 180 DAYS CONCURRENT FOR VIOLATION OF COUNT 5-20002(a)VC- MISDEMEANOR, TO BE SERVED IN ANY PENAL INSTITUTION.

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: **HISPANIC**

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☐ at initial sentencing hearing.
b. ☒ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC1170(d).)
e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	524	456	68 ☐ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced: "As of 11/18/08" 10-14-10		Time Served in State Institution: DMH CDCR CRC [] [] []	

15. The defendant is remanded to the custody of the sheriff: ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☐ the reception center designated by the Director of the California Department of Corrections and Rehabilitation.
☒ other (specify): **WASCO STATE PRISON**

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

RACHELLE SERRANO

DATE

10-14-10